

Court No. - 3

Case :- WRIT - C No. - 6974 of 2022

Petitioner :- Sanjay Kumar

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Brahma Nand Pandey

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Deepak Verma,J.

Heard Sri Brahma Nand Pandey, learned counsels for the petitioner, learned Standing Counsel for the respondent nos.1, 5 & 6 and Sri Vijay Singh, Advocate, holding brief of Sri Chetan Chatterjee, learned counsel for the respondent nos.2, 3 & 4.

This writ petition has been filed praying for the following relief:

"(i) Issue a writ, order or direction in the nature of certiorari to quash the recovery certificate dated 25.10.2021 of Rs.2,36,772/-(Two Lakh Thirty Six Thousand Seven Hundred Seventy two only) issued by the respondent no.5 (Annexure No.4 to the writ petition).

(ii) Issue a writ, order or direction in the nature of mandamus commanding the respondents not to realize the recovery amount of Rs.2,36,772/- (Two Lakh Thirty Six Thousand Seven hundred Seventy Two only) issued by the respondents from the petitioner.

(iii) Issue a writ, order or direction in the nature of mandamus commanding to the respondent No.5 or any independent agency to initiate and complete the detail enquiry against the dishonest respondents as well as punish the same for illegal action taken against the petitioner."

Sri Vijay Singh, holding brief of Sri Chetan Chatterjee, learned counsel for the respondent Nos.2,3 & 4/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this **writ petition is disposed off** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of

hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 30.5.2022

SKD